SANDRA MANYANGADZE
versus
HERBERT JENA

HIGH COURT OF ZIMBABWE
TSANGA J
Harare, 28 JANUARY 2026

Chamber Application (Reasons)

TSANGA J

On the 9th of December 2025, I granted an order in a chamber application for contempt of court. The order was framed as follows:

1. The Respondent be and is hereby declared to be in contempt of court.
2. The Respondent be and is hereby sentenced to ninety (90) days' imprisonment, suspended on condition that he complies with the order in Case Number HC 130/24 within seventy-two (72) hours of this order.
3. The Respondent shall pay costs of this application on a legal practitioner and client scale.

The applicant averred that she had instituted summons against the respondent under case number HC 130/24 for the sharing of matrimonial property. Despite being aware of the action, the respondent elected not to defend it. Consequently, judgment was granted by Ndlovu J on 15 November 2024.

According to the applicant, the respondent was fully aware of the said order and had failed to comply with it. The order granted, directed inter alia, that the applicant was to retain possession of a Mercedes Benz GLE, white in colour, registration number AGF 6111, and a Volkswagen Golf, white in colour, registration number 3608125, engine number CHH. The applicant had stated that these vehicles were acquired during the subsistence of the marriage and formed part of the parties' joint estate. More so she averred that she had contributed to their purchase.

It is common cause that the respondent was served with the order and acknowledged receipt thereof. On 19 February 2025, the applicant's legal practitioners addressed correspondence to the respondent's legal practitioners complaining of non-compliance with the court order and demanding the release of the vehicles. The respondent was warned that failure to comply would result in contempt of court proceedings being instituted. The respondent's legal practitioners undertook to furnish a substantive response by 5 March 2025 after consulting their client whom they said was out of town. No such response was forthcoming thereafter. The present application for contempt of court was therefore filed in March 2025 to which the respondent, according to the record, filed a notice of opposition.

In his notice of opposition dated April 2025, the respondent sought a stay of the contempt proceedings pending the determination of his application for rescission of the divorce judgment, which application for rescission was filed under case number HCHF 994/25. He contended in opposing the application for contempt of court, that he had filed the rescission application in March 2025, prior to the institution of the contempt proceedings. He further alleged that the vehicles in question did not belong to him but to a third party.

The matter was removed from the roll to allow for the determination of the rescission application according to the record. Materially, at the time the chamber application was resuscitated on 14 October 2025, the application for rescission under HCHF 994/25 had been dismissed by Mhuri J on 15 September 2025 in judgment HH 546/25. In that judgment, the learned judge found that the respondent had been in wilful default and that the rescission application had no prospects of success. Resultantly, the judgment granted by Ndlovu J under HC 130/24, which is the divorce matter, therefore remains extant and binding. It is trite that orders of court, whether correctly or incorrectly granted, have to be obeyed until they are properly set aside – *Culverwell* v *Berra* 1992 (4) SA 490 (W).

The law relating to contempt of court is settled. Contempt of court is committed where there is a wilful and mala fide refusal or failure to comply with a court order. The essential elements that must be established are:

1. That an order was granted against the respondent;
2. That the respondent was aware of the order; and
3. That the respondent wilfully disobeyed or neglected to comply with the order.

See, *Sheetlite Mining Company Ltd v Mahachi* 1998 (1) ZLR 173 (H), *Matanda (Pvt Ltd v Gotore* 2009 (1) 364 (H).

In the present matter, it is not in dispute that an order was granted against the respondent. It is equally not in dispute that the respondent was fully aware of the order and that his application for rescission had been denied. It must be emphasised that the respondent had stated in his notice of opposition when the matter was initially filed that the application ought to be stayed or put in abeyance pending finalisation of an application for rescission in HCHF 994/25.

It is further common cause that the respondent failed and refused to comply with the order even after his application for rescission was denied. Wilfulness and *mala fides* on the part of the applicant were properly inferred, more so as the application for contempt had been re-served on him on the 7th of November 2025. No lawful justification for such non-compliance was advanced, particularly in light of the dismissal of the rescission application.

All the requirements for a finding of contempt of court having been satisfied, there was no basis upon which the chamber application could be refused. The respondent's conduct constitutes a wilful and mala fide disregard of a valid court order.

Accordingly, the order granted on 9 December 2025 was in my view properly made.

TSANGA J……